

25CHCV03883 25CHCV03883

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PLAINTIFF'S MOTION TO SET ASIDE/VACATE DISMISSAL

Motion filed on May 22, 2026.

MOVING PARTY: Alexander Kurbet (Plaintiff)

RESPONDING PARTY: Vardan Oganisyan (Defendant)

NOTICE: OK

RELIEF REQUESTED: Plaintiff requests that the Court vacate its April 28, 2026 order sustaining Defendant's demurrer without leave to amend and the resulting May 6, 2026 judgment of dismissal. Plaintiff also requests leave to file the proposed First Amended Complaint.

RULING: Granted.

BACKGROUND

On November 3, 2025, Alexander Kurbet (Plaintiff) filed a complaint against Vardan Oganisyan (Defendant), asserting causes of action for breach of oral contract and common counts.

On January 27, 2026, Defendant filed a demurrer to the complaint. On April 24, 2026, Plaintiff filed an untimely opposition titled "Objection to Demurrer," which included the declaration of Bernal P. Ojeda and a proposed amended complaint.

On April 28, 2026, the Court sustained the demurrer without leave to amend. On May 6, 2026, the Court entered judgment dismissing the action with prejudice.

On May 22, 2026, Plaintiff filed this motion with the declaration of Bernal P. Ojeda and a proposed amended complaint. On July 23, 2026, Defendant filed an opposition, evidentiary objections, and a request for judicial notice. No timely reply was filed.

DISCUSSION

Request for Judicial Notice

Defendant's request for judicial notice of eight documents filed in this action is denied as unnecessary. The Court may review its own records without taking judicial notice of them.

Evidentiary Objections

The Court does not reach Defendant's evidentiary objections because the challenged evidence is not material to the disposition of the motion.

Scope of Requested Relief

Defendant argues that the motion seeks relief only from the April 28, 2026 order and does not address the May 6, 2026 judgment. The April 28 order sustained the demurrer without leave to amend. The dismissal with prejudice was entered by judgment on May 6, 2026.

The notice of motion expressly seeks to vacate the dismissal with prejudice and to permit an amended complaint. Defendant understood that Plaintiff sought reinstatement of the action and addressed the May 6 judgment in the opposition. The Court therefore construes the motion as seeking relief from both the April 28 order and the resulting May 6 judgment.

Relief Under Section 473

Under Code of Civil Procedure, section 473, subdivision (b), "the court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Relief under this section is mandatory when based on an attorney affidavit of fault. Otherwise, it is discretionary. (Ibid.) An application for relief must be made no more than six months after entry of the order from which relief is sought and must be accompanied by an affidavit of fault attesting to the moving party's mistake, inadvertence, surprise, or neglect. (Ibid.; *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143.)

Here, the motion was filed on May 22, 2026, less than one month after the April 28 order and sixteen days after entry of judgment. The application is timely. Plaintiff's counsel submitted a sworn declaration accepting responsibility for failing to file a timely opposition to the demurrer. Counsel states that health problems caused him to feel groggy, dizzy, and unable to focus and that the response deadline passed without a timely filing. (Ojeda Decl. ¶ 7.) In opposition, Defendant argues that this account is inconsistent with counsel's earlier declaration, filed in support of the untimely Objection to Demurrer, which attributed the same delay to having just obtained the file from prior counsel. The two declarations describe different circumstances bearing on the same period, and the earlier account does not foreclose the possibility that illness also

contributed to counsel's inability to act once the file was received. The Court finds the declaration constitutes an attorney affidavit of fault based on counsel's mistake and neglect.

The required causal connection is also established. The April 28 order states that no timely opposition was filed and relies on the absence of any timely showing that the pleading could be cured of its statute of limitations defect as the basis for sustaining the demurrer without leave to amend. The judgment of dismissal followed from that ruling.

Defendant emphasizes that counsel appeared at the April 28 hearing, was informed of the tentative ruling, and elected to submit rather than argue or request leave to amend. (Sarkissian-Shaghzo Decl. ¶¶ 7-8; Minute Order, Ex. 1.) By the time of the hearing, the tentative ruling already reflected the consequence of counsel's earlier failure to timely oppose the demurrer, including the absence of any timely showing that the pleading could be cured. Counsel's decision not to argue at the hearing did not independently cause the dismissal. It reflects the same underlying failure to timely oppose that the April 28 order identifies as the basis for its ruling, and it does not sever the causal connection between that failure and the dismissal. The dismissal was taken against Plaintiff through counsel's neglect. Relief is therefore mandatory under section 473, subdivision (b).

Plaintiff proposes to amend the complaint to allege a written acknowledgment or reaffirmation of the alleged obligation. (Motion, Ex. B.) The Court does not determine the legal sufficiency of the proposed allegations on this motion. Defendant may renew their arguments and challenge the amended pleading through an appropriate responsive pleading.

Because mandatory relief applies, the Court does not reach Plaintiff's alternative request for discretionary relief or Defendant's arguments concerning the ultimate merits of the proposed amended complaint.

CONCLUSION

The motion is granted. The May 6, 2026 judgment of dismissal is vacated. Plaintiff shall file and serve a First Amended Complaint within 10 court days of this order.